

Delaware HR Compliance Guide

Jun 16, 2026 - 10:21

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Updated: Jun 16, 2026 - 10:51

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STAY COMPLIANT. PROTECT YOUR BUSINESS. EMPOWER YOUR PEOPLE.

DELAWARE HR COMPLIANCE GUIDE

Your essential resource for Delaware HR laws, regulations, and best practices.



WHY IT MATTERS

- Stay compliant with federal, state & local laws
- Protect your business from costly penalties
- Support a fair, inclusive, and productive workplace
- Build trust and confidence with your team

STAY COMPLIANT
Meet all Delaware and federal requirements.

PROTECT EMPLOYEES
Promote safe, fair, and inclusive workplaces.

REDUCE RISK
Avoid penalties and compliance issues.

FOCUS ON GROWTH
We handle compliance so you can grow your business.

KEY DELAWARE HR COMPLIANCE AREAS

- Minimum Wage & Overtime**
Stay up to date with Delaware wage and overtime laws.
- Equal Pay & Pay Transparency**
Ensure fair pay practices and transparency.
- Workplace Safety**
Maintain a safe and healthy work environment.
- Employee Classification**
Properly classify employees vs. independent contractors.
- Discrimination & Harassment Laws**
Understand Delaware's employment protections.
- Recordkeeping & Notices**
Keep required records and postings current.

Keep your business compliant with the latest Delaware HR laws and regulations.

DELAWARE COMPLIANCE HIGHLIGHTS

- Wage Payment & Collection Law
- Family & Medical Leave Insurance (Delaware FMLI)
- Paid Sick Leave Requirements
- Discrimination & Equal Opportunity Laws
- Employee Privacy & Data Security
- Unemployment Insurance & Benefits
- Hiring & Background Check Regulations
- Final Pay & Termination Requirements

PARTNER WITH HR EXPERTS

Get expert guidance, practical tools, and ongoing support to keep your business compliant and your people protected.

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Delaware HR Compliance Guide

Applicant and Employee Screening

Credit and Investigative Checks

Delaware law does not expressly allow or prohibit employers from obtaining credit checks on applicants or employees within the private sector. However, any background screenings remain strictly subject to the federal Fair Credit Reporting Act.

Arrest and Conviction Checks

Employers may request state criminal background checks through the Delaware State Police Department's Bureau of Identification. While employers are generally able to obtain criminal background information on applicants and employees, they are prohibited from asking applicants about expunged criminal records. Applicants are not required to disclose criminal records that have been expunged.

Mandatory Background Checks

Delaware law requires that background checks be conducted for the following positions:

- Department of Corrections personnel
- Childcare workers
- Health care personnel, including those working for a home health agency
- Public school personnel
- School bus drivers
- Nursing home personnel

Polygraph and Genetic Information Screening

Employers are prohibited from requiring, requesting, or suggesting that any applicant or employee take or cause, directly or indirectly, a polygraph or lie detector test as a condition of employment or continued employment.

Child Labor Protections

Daily and Weekly Hour Limitations

Minors under 16 years of age are restricted to the following working hours:

- Non-school days: Maximum 8 hours per day
- Non-school weeks: Maximum 40 hours per week
- School days: Maximum 4 hours per day
- School weeks: Maximum 18 hours per week
- Permitted work hours: Between 7:00 a.m. and 7:00 p.m. (extended to 9:00 p.m. from June 1st through Labor Day)

There are no state-specific hourly restrictions for minors aged 16 and 17, though federal standards apply.

Prohibited Hazardous Occupations

Minors are prohibited from working in hazardous occupations. Prohibited hazardous fields for minors include logging, mining, operating heavy machinery, and handling explosive or highly dangerous substances.

Employment Certificates

Employers must obtain and keep on file a valid child labor work permit for all employed minors under the age of 16.

Compensation, Hours, and Operations

Minimum Wage and Overtime Baselines

COMPENSATION, HOURS, AND OPERATIONS

MINIMUM WAGE AND OVERTIME BASELINES

Know the Rules. Stay Compliant. Protect Your Business.

FAIR PAY.
FAIR HOURS.
STRONG BUSINESS.

KEY REQUIREMENTS

- MINIMUM WAGE**
Pay at least the federal, state, and local minimum wage.
- OVERTIME PAY**
Pay 1.5x regular rate for hours worked over 40 in a workweek.
- EMPLOYEE CLASSIFICATION**
Properly classify employees as exempt or non-exempt.
- ACCURATE TIME TRACKING**
Maintain precise records of all hours worked.
- RECORDKEEPING**
Keep required wage and hour records for at least 3 years.

INDUSTRY SPOTLIGHT

RETAIL Manage part-time schedules and overtime accurately.	HOSPITALITY Track shifts, tips, and overtime compliance.	HEALTHCARE Ensure proper pay for long shifts and on-call time.	MANUFACTURING Monitor hours and overtime across multiple teams.	TECHNOLOGY Stay compliant with exempt and non-exempt roles.
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BEST PRACTICES

Regularly review wage and hour policies.	Train managers on overtime and time reporting rules.	Use time tracking tools to reduce errors.	Audit records periodically to ensure compliance.
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Stay informed. Stay compliant.

(833) 817-6995

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Stronger policies. Happier teams. Better business outcomes.

The standard minimum wage in Delaware is 15.00 dollars per hour. Tipped employees may be paid a base wage of 2.23 dollars per hour, provided that their tips combined with the base wage equal or exceed the standard minimum wage rate for all hours worked. Delaware has eliminated youth and training wages, meaning minor workers must receive the full minimum wage rate.

Employers must compensate non-exempt employees at a rate of 1.5 times their regular rate of pay for all hours worked in excess of 40 hours within a single workweek.

Meal and Rest Breaks

Employees who work a shift lasting 7.5 or more continuous hours must be provided with an unpaid meal break of at least 30 minutes. This break must be scheduled after the first 2 hours of work and before the last 2 hours of the shift. Exceptions to this rule apply when compliance would endanger public safety, when duties can only be performed by a single employee, or when an employer has fewer than 5 employees per shift.

Frequency and Timing of Pay

Employers must pay employee wages at least once each calendar month. If pay periods are established on a more frequent basis (such as weekly or biweekly), the payment must be delivered within 10 calendar days after the end of the corresponding pay period.

Employee Leaves and Accommodations

Delaware Paid Leave Framework

EMPLOYEE LEAVES AND ACCOMMODATIONS

DELAWARE PAID LEAVE FRAMEWORK

Support your employees. Stay compliant. Strengthen your workplace.

DELAWARE PAID FAMILY & MEDICAL LEAVE (PFML) PROGRAM

Provides paid leave benefits to eligible employees for qualifying life events.

- Employee-funded through payroll contributions
- Benefits for family leave, medical leave, and safe leave
- Administered by the Delaware Department of Labor

COVERED LEAVE TYPES	EMPLOYEE ELIGIBILITY	REASONABLE ACCOMMODATIONS	EMPLOYER BEST PRACTICES
FAMILY LEAVE Bond with a new child, care for a family member with a serious health condition. MEDICAL LEAVE Address your own serious health condition or injury. SAFE LEAVE Seek help and ensure safety from domestic violence, sexual assault, or stalking. QUALIFYING EVENTS Includes birth, adoption, foster care, serious health conditions, and more.	EMPLOYEE ELIGIBILITY - Worked 1,250 hours in the base year - Earned at least \$2,500 in the base year - Applies to most Delaware employees - Some exemptions may apply BENEFIT HIGHLIGHTS - Up to 12 weeks of benefits for family leave - Up to 12 weeks for medical leave - Up to 2 weeks for safe leave - Partial wage replacement based on state plan	REASONABLE ACCOMMODATIONS Employers must provide reasonable accommodations to qualified employees with disabilities or limitations. EXAMPLES INCLUDE: - Flexible schedules - Modified work assignments - Remote work options - Accessible workplace adjustments	EMPLOYER BEST PRACTICES - Understand your obligations under Delaware leave laws. - Communicate policies clearly to employees. - Keep accurate records and document requests. - Maintain confidentiality and treat employees with respect.

STRONG POLICIES. SUPPORTIVE WORKPLACES.

Follow Delaware's paid leave laws and accommodation requirements to build a healthier, stronger, and more compliant business.

SUPPORT YOUR TEAM. BUILD A BETTER BUSINESS.

Stay informed. Stay compliant.

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Delaware Department of Labor
www.delawareworks.com

The Healthy Delaware Families Act establishes a state-mandated paid family and medical leave insurance program. Eligible employees (who have been employed for at least 12 months and have worked 1,250 hours) may receive up to 12 weeks of partial wage replacement (up to 80%) for specific family or medical reasons. The program applies fully to employers with 25 or more employees. For employers with 10 to 24 employees, the mandate applies exclusively to parental leave.

Jury Duty and Court Witness Leave

All employers must grant time off to employees summoned for jury duty or subpoenaed as a court witness. This leave may be unpaid, but employers are strictly prohibited from discharging, threatening, or coercing an employee due to their civic service or attendance in court.

Lactation Accommodation Requirements

Employers must provide reasonable daily break times for an employee to express breast milk. The employer must make reasonable efforts to provide a private, secure space other than a restroom or toilet stall close to the employee's work area for this purpose.

Separations, Layoffs, and Closings

Final Pay Timelines

When an employee is discharged, laid off, or voluntarily resigns, all earned and unpaid wages must be paid in full by the next regularly scheduled payday through standard payment methods.

Vacation and PTO Payouts

Delaware state law does not mandate the payout of accrued, unused vacation time or paid time off (PTO) upon separation unless the employer's binding internal policy, employee handbook, or employment contract explicitly promises a payout at termination.

At-Will Employment and Exceptions

Delaware is an employment-at-will state, meaning that in the absence of a specific contract, either the employer or the employee may terminate the employment relationship at any time for any lawful reason. This rule remains subject to common-law exceptions, including terminations that directly violate established public policy.

Workplace Privacy and Tobacco

Social Media and Electronic Privacy

Employers are generally prohibited from requesting, requiring, or coercing employees or job applicants to disclose usernames, passwords, or authentication credentials to personal social media accounts or personal online profiles.

Workplace Smoking and Vaping Bans

Under the Clean Indoor Air Act, smoking and the use of electronic smoking devices (vaping) are strictly prohibited inside all enclosed workplaces, public buildings, and commercial facilities in Delaware.

Mandated State Programs

Sexual Harassment Prevention Training

Employers with 50 or more employees must provide mandatory, interactive sexual harassment prevention training to all employees every two years. New employees must receive this training within one year of hire (after 6 months of continuous employment). New supervisors and managers must receive additional supervisor-focused training within one year of assuming their managerial duties. Furthermore, all employers with 4 or more employees must distribute an information sheet or official notice regarding sexual harassment protections to new workers.

Independent Contractor Classification

Primary Status Vetting Tests

Delaware follows common-law guidelines to determine whether a worker is an independent contractor or an employee. The evaluation focuses heavily on the nature of the work performed, the structural setup of the business, and the employer's overall right to control the means and methods of execution.

Workplace Safety and Violence

OSHA Jurisdiction and Standards

Private-sector employers and federal workers in Delaware are regulated directly by the federal Occupational Safety and Health Administration (OSHA). Under the OSH Act, employers must provide a workplace free from recognized hazards, comply with safety standards, and electronically submit required injury and illness logs.

Weapons and Firearms Prohibitions

Delaware state law does not limit an employer's authority to ban weapons on company property. Employers retain the right to establish workplace policies prohibiting firearms and other weapons at the worksite.

State Administrative Operations

Record Retention Schedules

Employers must maintain accurate records of employee hours, wages, and child labor details for a minimum of 3 years. Documentation relating to workers' compensation claims must be preserved according to state and federal retention guidelines.

New Hire Reporting Compliance

All employers must report the hiring or rehiring of any employee within 20 days of their first day of work to the Delaware State Directory of New Hires.

Delaware Compliance Summary Reference Table

Rule Category	State Requirement Metric	Governing Reference
Standard Minimum Wage	15.00 dollars per hour	Delaware Minimum Wage Law
Overtime Premium Threshold	1.5x regular rate for hours worked past 40 in a single workweek	Delaware Overtime Law
Minor Training Wage	Extinguished and eliminated from the state regulations	Delaware Wage Rules
Nonexempt Meal Breaks	Minimum 30 minutes for shifts lasting 7.5 or more straight hours	Del. Code Ann. tit. 19, section 707
Paid Rest Break Mandates	No general state law requiring minor rest breaks	Delaware Labor Regulations
Scheduled Work Caps	Hours limits apply based on age and school sessions for minors	Delaware Child Labor Law
Initial Application Bans	Ban the box rules apply to public sector employers	Delaware Screening Rules
Personnel File Access	Employees have specific state access rights to request review	Delaware Personnel Records Act
Disciplinary Copy Delivery	Recommended to keep documentation matching standard retention	Delaware Employment Practices

Rule Category	State Requirement Metric	Governing Reference
Separation Check (Fired)	Due to the employee by the next regularly scheduled payday	Delaware Wage Payment Law
Separation Check (Quit)	Due to the employee by the next regularly scheduled payday	Delaware Wage Payment Law
Paid Family Leave Mandate	Covered under the Healthy Delaware Families Act for 10 plus staff	Delaware Paid Leave Rules
Mandatory Supervisor Training	Sexual harassment training required for employers with 50 plus staff	Delaware Anti Discrimination Act
Data Breach Alert Window	Notice must be provided within reasonable timeframes after discovery	Delaware Consumer Protection